

The Police Forces (Restriction Of Rights) Act, 1966

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Union of India - Act

The Police Forces (Restriction Of Rights) Act, 1966

UNION OF INDIA

India

The Police Forces (Restriction Of Rights) Act, 1966

Act 33 of 1966

Published in Gazette 33 on 2 December 1966

Assented to on 2 December 1966

Commenced on 2 December 1966

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The Police Forces (Restriction Of Rights) Act, 1966

(33 of 1966)

150.

Statement of Objects and Reasons.-Article 33 of the Constitution provides that Parliament may by law determine to what extent any of the rights conferred by Part III of the Constitution shall, in their application to the members of the Armed Force or the Forces charged with the maintenance of public order, be restricted or abrogated so as to ensure the proper discharge of their duties and the maintenance of discipline among them. In the Army Act, 1950, the Air Force Act, 1950, and the Navy Act, 1957, provision has been made by virtue of the said Article 33 for the restriction or abrogation of the rights conferred by Part III of the Constitution in their application to the members of the Armed Forces. No such provision has so far been made by Parliament by law in regard to the Forces charged with the maintenance of public order. It is

felt that in order to ensure the proper discharge of their duties and the maintenance of discipline among them, the members of the Force charged with the maintenance of public order should not, without the express sanction of the Central Government form any trade union, labour union or any political association or communicate with the press or publish or cause to be published anything except where such communication or publication is in the bona fide discharge of their duties or is of purely literary, artistic or scientific character. It is also felt that no member of a police force should participate in, or address any meeting or take part in any demonstration organised by anybody of persons for any political purposes. The Bill is intended to achieve the aforesaid objects.

An Act to provide for the restriction of certain rights conferred by Part III of the Constitution in their application to the members of the Forces charged with the maintenance of public order so as to ensure the proper discharge of their duties and the maintenance of discipline among them.

Be it enacted by Parliament in the Seventeenth Year of the Republic of India as follows:

For Date of enforcement in the Union territory of Delhi on 3.12.1966, see Gazette of India, 1966, Pt.II, Section 3(i), p.899 (G.S.R. 1848);in the Union territories of Andaman and Nicobar Islands, Chandigarh, Dadra and Nagar Haveli, Goa, Daman and Diu, Himachal Pradesh, Laccadive, Minicoy and Amindive Islands, Manipur, Pondicherry and Tripura on 1.8.1967, see Gazette of India, 1967, Pt.II, Section 3(i), p.1224 (G.S.R. 1122);(H.P.,Manipur and Tripura are States now, see Acts 53 of 1970 and 81 of 1971);in Gujarat State on 1.6.1967, see Gujarat Government Gazette, 1.6.1967, Pt.IV-A, p.1078;in M.P.State on 10.2.1967, see M.P.Gazette, 10.2.1967, Pt.III, p.114;in Punjab on 4.9.1967, see Punjab Gazette 2.9.1967, Pt.III, Ext., p.371;in Jammu and Kashmir on 1.12.1967, see J. and K. Gazette, 30.11.1967, Pt.III, Ext.,in Rajasthan on 21.12.1966,see Rajasthan Gazette, 21.12.1966, Pt. IV (Ga), Ext., p.619;in U.P. on 28.3.1973, see U.P. Government Gazette, 28.3.1973, Ext., p.1;in Haryana on 1.1.1974,see Haryana Government Gazette, 28.12.1973,Pt.III (L.S.), Ext., p.1013;in Himachal Pradesh on 8.1.1974, see H.P. Gazette, 8.1.1974, Ext., p.17;in Karnataka on 1.11.1973, see Karnataka Gazette, 24.1.1974, Pt.IV, Section 2C(ii), p.285;in A.P. on 7.5.1975, see A.P.Gazette, 2.5.1975, Pt.I, Ext., No. 137.In Kerala on 1.9.1976, see Kerala Gazette, 24.8.1976.Pt.I, Section 4,G. 1612 (No. 34);in Meghalaya on 1.12.1977, see Meghalaya Gazette, 1.12.1977, Pt.VA, Ext., p.377;in Tamil Nadu on 5.7.1979, see Tamil Nadu Gazette 5.7.1979, Pt.II, Section 2, Ext., p.1 (No.204);in Maharashtra on 15.7.1979 see Maharashtra Gazette, 26.7.1979, Pt. IV-A, p.502.Extended to Sikkim by S.O. 208 (E), dated 16.5.1975.

1.

Short title, extent and commencement

(1)

This Act may be called The Police Forces (Restriction of Rights) Act, 1966.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as may be appointed in this behalf by notification in the Official Gazette,

(a)

in a Union territory, by the Central Government; and

(b)

in a State, by the Government of that State:

Provided that different dates may be appointed by the Central Government for different Union territories.

2.

Definitions

.In this Act, unless the context otherwise requires,

(a)

member of a police force means any person appointed or enrolled under any enactment specified in the Schedule;

(b)

police force includes any force charged with the maintenance of public order;

(c)

prescribed means prescribed by rules made under this Act.

3.

Restrictions respecting right to form association, freedom of speech, etc

(1)

No member of a police force shall, without the express sanction of the Central Government or of the prescribed authority,

(a)

be a member of, or be associated in any way with, any trade union, labour union, political association or with any class of trade unions, labour unions or political associations; or

(b)

be a member of, or be associated in any way with, any other society, institution, association or organisation that is not recognised as part of the force of which he is a member or is not of a purely social, recreational or religious nature; or

(c)

communicate with the press or publish or cause to be published any book, letter or other document except where such communication or publication is in the bona fide discharge of his duties or is of a purely literary, artistic or scientific character or is of a prescribed nature.

Explanation. If any question arises as to whether any society, institution, association or organisation is of a purely social recreational or religious nature under clause (b) of this sub-section, the decision of the Central Government thereon shall be final.

(2)

No member of a police force shall participate in, or address, any meeting or take part in any demonstration organised by any body of persons for any political purposes or for such other purposes as may be prescribed.

4.

Penalty

.Any person who contravenes the provisions of section 3 shall, without prejudice to any other action that may be taken against him, be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to two thousand rupees, or with both.

5.

Power to amend Schedule

(1)

The Central Government may, by notification in the Official Gazette, amend the Schedule by including therein any other enactment relating to a force charged with the maintenance of public order or by omitting therefrom any enactment already specified therein and on the publication of the notification such enactment shall be deemed to be specified in, or as the case may be, omitted from, the Schedule.

(2)

A copy of every notification issued under sub-section (1) shall be laid before each House of Parliament, as soon as may be, after it is issued.

6.

Power to make rules

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(2)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days, which may be comprised in one session or in [two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid]

[Substituted by Act 4 of 1986, Section 2 and Sch., for certain words (w.e.f. 15.5.1986).]

both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

The Schedule

(See sections 2 and 5)

1. The Madras District Police Act, 1859 (24 of 1859).

2. The Andhra Pradesh (Andhra Area) District Police Act, 1859 (24 of 1859).

3. The Police Act, 1861 (

5 of 1861

).

4. The Calcutta Suburban Police Act, 1866 (Bengal Act 2 of 1866).

5. The Calcutta Police Act, 1866 (Bengal Act 4 of 1866).

6. The Bengal Police Act, 1869 (Bengal Act 7 of 1869).

7.

The Police Act, 1888 (

3 of 1888

).

8.

The Madras City Police Act, 1888 (Madras Act

3 of 1888

).

9.

The Bengal Military Police Act, 1892 (5 of 1892).

10.

The Andhra Pradesh (Telangana Area) District Police Act, 1329 Fasli (10 of 1329 F).

11.

The Eastern Frontier Rifles (West Bengal Battalion) Act, 1920 (Bengal Act 2 of 1920).

12.

The Police Act, 1983 (1927 A.D.) (J. K. Act 2 of 1983).

13.

The Hyderabad City Police Act, 1348 Fasli (9 of 1348 F).

14.

The Assam Rifles Act, 1941 (

5 of 1941

) [Repealed Assam Act 10 of 1953.

15.

The Orissa Military Police Act, 1946 (Orissa Act 7 of 1946).

16.

The Delhi Special Police Establishment Act, 1946 (

25 of 1946

).

17.

The U.P. Pradeshik Armed Constabulary Act, 1948 (U.P. Act 40 of 1948).

18.

The Central Reserve Police Act, 1949 (

66 of 1949

).

19.

The Rajasthan Armed Constabulary Act, 1950 (Rajasthan Act

12 of 1950

).

20.

The Bombay Police Act, 1951 (Bombay Act 22 of 1951).

21.

The Bombay State Reserve Police Force Act, 1951 (Bombay Act 38 of 1951).

22.

The Kerala Police Act, 1960 (Kerala Act 5 of 1961).

23.

The Mysore Police Act, 1963 (Mysore Act 4 of 1964).

24.

The Nagaland Armed Police Act, 1966 (Nagaland Act 6 of 1966).

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